when that is over we grow cool and compassionate. I grant there is a material difference in the circumstances of foreign and domestic prisoners, but there is none in their nature. Debtors and felons, as well as hostile foreigners, are men, and by men they ought to be treated as men.

Those gentlemen who, when they are told of the misery which our prisoners suffer, content themselves with saying, Let them take care to keep out, prefaced perhaps, with an angry prayer; seem not duly sensible of the favour of Providence which distinguishes them from the sufferers: they do not remember that we are required to imitate our gracious Heavenly Parent, who is kind to the unthankful, and to the evil: they also forget the vicissitudes of human affairs; the unexpected changes to which all men are liable: and that those whose circumstances are affluent, may in time be reduced to indigence, and become debtors and prisoners. And as to criminality, it is possible, that a man who has often shuddered at hearing the account of a murder, may on a sudden temptation commit that very crime. Let him that thinks he standeth take heed lest he fall, and commiserate those that are fallen.

But it may be said, enough of the declamatory kind has been written by others. Much it is true, has been written: and I beg leave to transcribe almost verbatim a few lines from a celebrated author, which may be thought to come under that description. After representing the sufferings of prisoners, he goes on to this purpose, "The misery suffered in gaols is not half their evil; they are filled with every sort of corruption that poverty and wickedness can generate: with all the shameless and profligate enormities that can be produced by the impudence of ignominy, the rage of want, and the malignity of despair. In a prison the check of the public eye is removed; and the power of the law is spent. There are few fears, there are no blushes. The lewd inflame the more modest; the audacious harden the timid. Every one fortifies himself as he can against his own remaining sensibility; endeavouring to practise on others the arts that are practised on himself; and to gain the applause of his worst associates by imitating their manners."

Besides the grievances already mentioned; there are several bad customs in gaols, and relating to them, which aggravate the distress of prisoners. I shall enumerate these distinctly, yet concisely.

SECTION II

BAD CUSTOMS IN PRISONS

A CRUEL custom obtains in most of our gaols, which is that of the prisoners demanding of a new comer garnish, footing, or (as it is called in some London gaols) chummage. "Pay or strip," are the fatal words. I say fatal, for they are so to some; who having no money, are obliged to give up part of their scanty apparel; and then if they have no bedding or straw to sleep on, contract diseases, which I have known to prove mortal.[1]

In many gaols, to the garnish paid by the new-comer, those who were there before make an addition; and great part of the following night is often spent in riot and drunkenness. The gaoler or tapster finding his account in this practice, generally answers questions concerning it with reluctance. Of the garnish which I have set down to sundry prisons, I had my information from prisoners who paid it. But I am aware that the sum is sometimes varied by sets of succeeding prisoners, and the different circumstances of a new-comer. In some gaols, if a felon can pay the debtors' garnish (which is commonly more than that of the felons) he is entitled to partake of the garnish paid afterwards by new-come debtors. In a few places, this demand has been lately waived; in two or three, strictly prohibited by the magistrates.

Gaming in various forms is very frequent: cards, dice, skittles, mississippi and portobello-tables, billiards, fives, tennis, etc. In the country the three first are most common; and especially cards. There is scarce a county gaol but is furnished with them: and one can seldom go in without seeing prisoners at play. In London, all the sorts that I have named were till

[1] "In the year 1730, Nicholas Bennet, Joseph Robinson, John Head, and George Taverner, were indicted at the Old Bailey for robbing John Berrisford of two half-guineas, two sixpences, and two halfpence, in New Prison under the pretence of garnish, which fact being plainly proved, they were all found guilty of an assault and robbery; and to deter others from the infamous and inhuman practice of taking the money, and if they had none, of stripping poor prisoners that were upon any account committed to prison, so that oftentimes they have perished for want of clothing and necessaries, they received sentence of death."—Burton's *New View of London*, p. 468.